BRENDAN NGEHSI NEWANFORBI
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August 31, 2026

VIA ELECTRONIC MAIL ONLY

Andrew P. Frederick, Esq. (SBN 284832)
Morgan, Lewis & Bockius LLP
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Counsel for Defendant Amazon.com Services, LLC

Re: **Newanforbi v. Amazon.com Services, LLC, et al.** — Alameda County Superior Court, Case No. 26CV201554

Offer of a 14-Day Extension of Amazon's Time to Respond — Through and Including September 14, 2026

Dear Mr. Frederick:

Thank you for your August 24, 2026 notice of appearance. This letter offers Amazon an extension of its time to respond to the Complaint, and under separate cover today I am sending my opening demand to settle as to Amazon.

The deadline. Amazon was personally served through its registered agent, CSC - Lawyers Incorporating Service, on July 31, 2026. Its responsive pleading is due **today, August 31, 2026**: thirty days under Code of Civil Procedure section 412.20, subdivision (a)(3), with the thirtieth day falling on Sunday, August 30 and rolling to today under section 12a. Your notice of appearance recites the same date.

The offer. I offer to extend Amazon's time to respond by fourteen (14) days, through and including **September 14, 2026**. My reason is practical rather than generous: I would rather Amazon spend the next two weeks evaluating a settlement demand than spend it briefing a demurrer. If Amazon has already filed a responsive pleading today, the offer still stands — tell me and I will sign a stipulation taking it off calendar so the two weeks are not wasted.

Scope. So that nothing is misunderstood later, the offer is limited as follows:

- It applies to Amazon.com Services, LLC only. Accurate Background LLC is separately represented by Seyfarth Shaw LLP and was served the same day. I have made it the identical fourteen-day offer by separate letter today, but the two are independent: neither acceptance nor refusal by one defendant affects the other.
- It is a single fourteen-day extension. No further extension is implied and none should be assumed. Any additional extension would have to be agreed separately and in writing.
- It waives nothing. I reserve all rights and remedies, including the right to seek entry of default if no responsive pleading is on file on or before September 14, 2026.
- It is an agreement between the parties. Because no stipulation has been filed, the Court's docket will continue to show today's date. If you would prefer the extension on file, I will sign a stipulation and proposed order in whatever form you circulate.

How to accept. Because the deadline is today, please confirm by e-mail to bnn.cdl@gmail.com by **5:00 p.m. Pacific Time today**. If I do not hear from you, the offer lapses and the August 31 date controls — though if you come to me shortly afterward in good faith, I will hear you out rather than race to a default.

Section 430.41. I mention the meet-and-confer statute only so that the extension is not later mistaken for a waiver. If Amazon intends to demur, Code of Civil Procedure section 430.41, subdivision (a)(2), called for a meet-and-confer at least five days before the responsive date — that is, by August 26, 2026 — and no one contacted me on or before that date. I would rather Amazon have these fourteen days than have the parties argue about a declaration reciting a good-faith attempt that did not occur. I am available by telephone at any time this week, and the extension is meant to make that conversation possible.

Two housekeeping items. First, please confirm that you consent to electronic service at andrew.frederick@morganlewis.com under Code of Civil Procedure section 1010.6; I will serve accordingly rather than send duplicate hard copies. Second, the Notice of Amount of Punitive Damages Sought under Code of Civil Procedure section 425.115 — $250,000.00 as to Amazon — was filed and accepted by the Court on August 6, 2026. Personal service of that notice is in process, and I will provide you a copy on request.

Please confirm receipt of this letter.

Very truly yours,



Brendan Ngehsi Newanforbi
Plaintiff, In Pro Per

Method of delivery: Electronic mail only.
cc (by e-mail): andrew.frederick@morganlewis.com; file (Newanforbi v. Amazon.com Services, LLC, et al., Alameda Sup. Ct. No. 26CV201554)